

In The Matter of \$4,940.00 (In re Rastrojo)

21CF13559

PETITIONER'S APPLICATION TO SERVE BY PUBLICATION

This is a special proceeding to declare a forfeit of property seized on 06/17/21 by law enforcement officers during the execution of a search warrant at adjoining properties on Avenue A in Mountain Ranch. Deputies seized cash located in a trailer on the property. There is a companion criminal case (see 21C19892). Before the Court is a motion by The People to serve claimant by publication. The application indicates that his previously-disclosed mailing address (P.O. Box 1592, San Andreas) is no longer valid.

Nonjudicial forfeiture proceedings must comport with various due process protections, including proper notice to persons who claim a lawful possessory interest in the property seized. (*Ramirez v. Tulare County District Attorney's Office* (2017) 9 Cal.App.5th 911, 925-930; *Cuevas v. Superior Court* (2013) 221 Cal.App.4th 1312, 1320-1327.) If a verified claim is filed – as was the case here – the prosecuting authority must give “notice of the hearing in the same manner as provided in Section 11488.4.” (H&S Code §11488.5(c)(1).) For persons actually designated in the seizure receipt, notice to them requires formal service of a summons; for persons *not* designated in the receipt, but who otherwise claim an interest in the seized property, service on them must be by “by personal delivery or by registered mail.” (H&S Code §11488.4(c).) Neither the original, nor the amended, petition include a copy of the Notice of Nonjudicial Forfeiture Proceeding (aka, “the receipt”) or any reference to a receipt having been provided during the seizure. However, since the petition only describes an interaction with claimant at the property, since claimant admitted to being a tenant in possession, and since a claim opposing was filed, one would expect the receipt to have been handed to, and to designate, claimant in an effort to proceed via nonjudicial forfeiture.

The District Attorney's inability to properly serve claimant should come as little surprise given that the only effort has been to attempt to serve claimant at a U.S. post office box, which would not satisfy statutory due process requirements. (See CCP §415.20; *First American Title Ins. Co. v. Banerjee* (2022) 87 Cal.App.5th 37, 43; *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1201-1202.) The US Postal Service returned the service efforts as “vacant” and “no mail receptacle.” Claimant apparently closed his P.O. Box. No effort was made by the District Attorney to effectuate personal service at the property that claimant was renting and where the seizure occurred or any skip tracing effort. Claimant's personal identification cards were at the property, potentially those offered more addresses to consider. Since there is presently a bench warrant out for claimant in the related criminal case, this Court believes that additional efforts to serve claimant can be made short of resort to service by publication.

Motion is denied without prejudice to be refiled in the event the District Attorney's Office exhausts further efforts to effectuate personal service on claimant, and shall include a declaration of due diligence.

The Clerk shall provide notice of this Ruling to the parties forthwith. Petitioner to prepare a formal Order pursuant to Rule of Court 3.1312 in conformity with this ruling.

LAGUNA v. CLOUGH, et al

22CV46348

DEMURRER TO COMPLAINT

This is a quiet title and specific performance action involving an alleged oral promise to make a testamentary gift of real property. There are related actions (see 22UD13972 and 22PR8530). Before the Court is a demurrer to the operative Complaint, filed 10/07/22. Although the CCP §430.41 declaration filed with the demurrer suggests that plaintiff and his counsel intend to defend the pleading, no opposition appears in the court file. The time to file an amended pleading as a matter of right has lapsed (CCP §472), leaving this Court with the requisite task of deciding whether defendant's objection to the Complaint is well-taken, and if any method of cure is feasible.

Pertinent Background

In or about December of 2019, the brother of Charles Laguna (hereinafter "Charles" for ease of reference) purchased property on Black Oak Drive next door to Elizabeth Mary Edwards (hereinafter "decedent"). As a "neighborly gesture," Charles began providing assistance to decedent completing various household chores.

According to Charles, decedent asked him to move into her home and provide "regular" assistance, and orally promised him that in exchange for that effort she would – upon her passing – gift him her residence (290 Black Oak Drive, Mokelumne Hills, APN 020-029-123).

According to decedent's family, Charles provided care to decedent in exchange for free room and board, not an ownership stake in the residence.

Decedent died 05/20/22, leaving no testamentary instruments of any kind.

On 07/20/22, decedent's great-nephew Corbin Clough (hereinafter "Corbin" for ease of reference) commenced a petition for probate in this County (see 22PR8530).

Decedent's heirs-at-law include two siblings and a niece. Although Corbin indicated in the petition that decedent's estate included real property valued at \$726,500, based on the Inventory & Appraisal it would appear that her real property has a gross value closer to \$450,000 (without regard to encumbrances). Decedent's residence was appraised by the probate referee at \$250,000.

On 08/21/22, Corbin caused to be delivered to Charles a 60-Day Notice to Terminate in accordance with Civil Code §1946.2(b), advising Charles that the residence was going to be "pulled from the rental market" at that time.